

SENATE BILL 2402

By White

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7, Part 5; Title 24; Title 37 and Title 38,
relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) The department shall record all interviews of children conducted by department employees as part of the department's investigation of claims of abuse or dependency and neglect. The recording may be an audio recording or a video recording.

(b) It is an exception to the requirement of subsection (a) that:

(1) The employee in good faith believed the interview was being recorded, and a technical issue with the equipment prevented the recording; or

(2) Circumstances that could not have been reasonably foreseen prevented the recording of the interview.

(c) The failure of the department to record an interview pursuant to subsection (a) does not affect the admissibility into evidence of any child statement or other evidence resulting from the interview.

(d) All audio or video recordings generated pursuant to this section are confidential pursuant to § 37-5-107.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.